

CASE IDENTIFICATION & FORUM	FACTS & LEGAL ISSUES (POINTS)	JUDICIAL RULING & HOLDINGS (POINTS)	THESIS SIGNIFICANCE & REFERENCES (POINTS)
📁 1. Supreme Court of India — Constitutional, Environmental & Corporate Precedents			12 LANDMARK JUDGMENTS
#01 • 🇮🇳 Indian M.K. Ranjitsinh & Ors. v. Union of India & Ors. 2024 SCC OnLine SC 1259 / (2024) 6 SCC 441 / 2025 INSC 1472 Supreme Court of India (2024–2025) Bench: Dr. D.Y. Chandrachud CJI, J.B. Pardiwala & Manoj Misra JJ. Constitutional Climate Rights Directors' Duties §166(2) Corporate Environmental Responsibility	🔗 Summary: Continuing Great Indian Bustard litigation: the 21 March 2024 judgment recognised a justiciable right to be free from the adverse effects of climate change under Articles 14 and 21 and replaced a blanket undergrounding order with an expert committee. The 19 December 2025 judgment accepted the committee's revised priority areas and, at paragraphs 35–40, applied Section 166(2) of the Companies Act, 2013 (with Section 135 and Schedule VII) to hold that directors' fiduciary duty and CSR include protection of the environment and endangered-species recovery. 📖 FACTUAL CONTEXT: - Species Crisis: Critically endangered Great Indian Bustard (GIB) faced fatal overhead power line collisions in Rajasthan & Gujarat. - Blanket Order Modification: In 2021, Supreme Court ordered blanket undergrounding; Union Ministries & green energy developers sought modification citing technical infeasibility and India's 500 GW renewable transition target by 2030. 🔗 FRAMED LEGAL ISSUES: - Article 21 Climate Right: Whether Articles 14 & 21 guarantee an enforceable right to be free from adverse climate change effects (2024 INSC 280). - Balancing Transition vs. Conservation: How to reconcile endangered species conservation with national clean-energy commitments. - Corporate CER Duty (§ 166(2)): Whether Section 135 & Section 166(2) require power generators in GIB habitat to fund species recovery (2025 INSC 1472).	🔑 KEY JUDICIAL HOLDINGS: - Constitutional Climate Right (2024): Recognized a distinct, justiciable fundamental right under Articles 14 & 21 to be free from adverse climate impacts. - Habitat Reconciliation: Recalled blanket undergrounding order; appointed expert committee defining priority areas (14,013 sq km in Rajasthan; 740 sq km in Gujarat). - Directorial Fiduciary Duty (§ 166(2)): In 2025 disposal (paras 35–40), held Section 166(2) dismantled shareholder-only duty, legally mandating directors to protect the environment. - Mandatory CER Recovery: Applied Polluter Pays & 'species-best-interest' standards, requiring power generators in GIB habitat to fund in-situ and ex-situ recovery via CSR/CER funds.	💡 THESIS DOCTRINAL SIGNIFICANCE: - Constitutional Premise: Elevates greenwashing and environmental neglect from mere consumer misstatements to fundamental rights violations. - Company Law Authority: Direct Supreme Court precedent anchoring corporate environmental duties under Section 166(2) directorial fiduciary obligations. 📌 THESIS LOCATION: Chapters: Abstract (p. xxvii), Chapter 1 (p. 4, 27–28, 56, 79–80), Chapter 3 (p. 182–185), Chapter 5 (p. 242–243, 261, 263, 265–266, 307), Bibliography (p. 342) Footnotes: Fn. 10, 20, 237, 384–388, 447, 455, 461
#02 • 🇮🇳 Indian Tata Consultancy Services Ltd. v. Cyrus Investments Pvt. Ltd. & Ors. (2021) 9 SCC 449 / 2021 SCC OnLine SC 272 (26 March 2021) Supreme Court of India (2021) Bench: S.A. Bobde CJI, A.S. Bopanna & V. Ramasubramanian JJ. Directors' Duties §166(2) Pluricentric Corporate Model Corporate Governance	🔗 Summary: Supreme Court authoritatively ruled that Section 166(2) of the Companies Act, 2013 establishes a 'pluricentric' stakeholder model of corporate governance, mandating directors to protect the environment alongside shareholder interests. 📖 FACTUAL CONTEXT: - Governance Dispute: Abrupt removal of Cyrus Mistry from Tata Sons Executive Chairmanship in Oct 2016. - Oppression Petition: Mistry entities filed Sections 241–242 petitions alleging oppression, mismanagement, and governance abuses by Tata Trusts nominee directors. 🔗 FRAMED LEGAL ISSUES: - Scope of Codified Directorial Duties: Statutory ambit of directors' duties codified under Section 166 of the Companies Act, 2013. - Shareholder Primacy vs Pluricentric Model: Whether Indian company law adheres to Anglo-American shareholder primacy or multi-stakeholder governance.	🔑 KEY JUDICIAL HOLDINGS: - Section 166(2) Pluricentric Mandate: Para 19.30 affirmed that Section 166(2) ordains a 'combination of private interest and public interest', mandating directors to act for company, employees, shareholders, community, and environment. - Appeals Allowed: Set aside NCLAT order and upheld dismissal of oppression petition, affirming the legality of Tata Trusts' affirmative voting rights.	💡 THESIS DOCTRINAL SIGNIFICANCE: - Statutory Fiduciary Hook: Supreme Court confirmation that environmental protection is an enforceable statutory duty of directors under Section 166(2). - Anti-Greenwashing Relevance: Authorizes treating board-level fraudulent green disclosures as breaches of good-faith directorial duties. 📌 THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 1 (p. 56), Chapter 3 (p. 183–185), Chapter 5 (p. 264–265, 307) Footnotes: Fn. 460, 473

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#03 •  Indian Indian Medical Association (IMA) & Anr. v. Union of India & Ors. W.P.(C) No. 645/2022, order 7 May 2024 (Hima Kohli & Ahsanuddin Amanullah JJ.); further orders 14 May and 9 July 2024 Supreme Court of India (2024) Bench: Hima Kohli & Ahsanuddin Amanullah JJ. Misleading Advertisements Self-Declaration Certificate Mandate Regulatory Backsliding	⚡ Summary: Supreme Court mandated ex-ante Self-Declaration Certificates (SDC) for all advertisements to prevent misleading claims, exposing severe regulatory capture when the executive subsequently diluted the mandate. 📖 FACTUAL CONTEXT: ▪ Aggressive Deceptive Ads: Patanjali published persistent misleading advertisements claiming unverified cures for chronic lifestyle diseases and disparaging modern medicine. ▪ Expanded Inquest: Supreme Court expanded proceedings into systemic regulatory failure and misleading commercial advertising across FMCG, healthcare, and consumer goods. 🔗 FRAMED LEGAL ISSUES: ▪ Misleading Advertising Enforceability: Judicial enforceability of false advertising prohibitions under CPA 2019 and Drugs & Magic Remedies Act. ▪ Mandatory Ex-Ante Certification: Whether pre-publication Self-Declaration Certificates should be mandatory across all commercial advertising sectors.	🔑 KEY JUDICIAL HOLDINGS: ▪ Ex-Ante SDC Mandate: Directed advertisers and agencies to upload Self-Declaration Certificates on Broadcast Seva / PCI portals prior to publishing. ▪ Endorser Liability: Held commercial endorsers and influencers equally liable for promoting misleading claims. ▪ Executive Dilution: Subsequent MIB advisories limiting SDCs to food and health are executive instruments, not judicial rollbacks.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Procedural Anti-Deception Model: Provides the judicial blueprint for mandatory ex-ante verification matching the CCPA Greenwashing Guidelines 2024. ▪ Regulatory Capture Vulnerability: Demonstrates executive backsliding against judicially mandated advertising verification. 📌 THESIS LOCATION: Chapters: Abstract (p. xxvii), Chapter 1 (p. 28, 80), Chapter 5 (p. 251, 288, 299) Footnotes: Fn. 417-419
#04 •  Indian M.C. Mehta v. Union of India (Oleum Gas Leak / Shriram) (1987) 1 SCC 395 / AIR 1987 SC 1086 / 1987 SCR (1) 819 (20 December 1986) Supreme Court of India (1987) Bench: 5-Judge Constitution Bench: P.N. Bhagwati CJI, Ranganath Misra, G.L. Oza, M.M. Dutt and K.N. Singh JJ. Absolute Liability Enterprise Liability Capacity-Linked Compensation	⚡ Summary: Formulated the doctrine of Absolute Liability and capacity-linked compensation, establishing that hazardous corporate enterprises owe non-delegable duties to the community with zero exceptions. 📖 FACTUAL CONTEXT: ▪ Toxic Gas Escape: In Dec 1985, major oleum gas leak from Shriram caustic chlorine plant in Delhi caused 1 death, panic, and severe injuries. ▪ Article 32 PIL: M.C. Mehta filed PIL seeking immediate closure, enterprise relocation, and victim compensation. 🔗 FRAMED LEGAL ISSUES: ▪ Inadequacy of Strict Liability: Whether 19th-century strict liability (<i>Rylands v. Fletcher</i>) exceptions apply to modern hazardous industrial enterprises. ▪ Standard & Measure of Compensation: Applicable liability standard and damages calculation for hazardous corporate enterprises in populated zones.	🔑 KEY JUDICIAL HOLDINGS: ▪ Absolute Liability Doctrine: Enterprises engaged in hazardous activities owe an absolute, non-delegable duty to the community with zero common-law defenses. ▪ Capacity-Linked Damages: Compensation must correlate directly with enterprise financial capacity to ensure deterrence: '<i>The larger and more prosperous the enterprise, the greater must be the compensation.</i>'	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Turnover-Linked Penalties: Doctrinal foundation for calculating deterrence-based fines on corporate turnover for concealed environmental harm and emissions fraud. 📌 THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 5 (p. 245, 342, 364) Footnotes: Fn. 395, 38, 40
#05 •  Indian Vellore Citizens' Welfare Forum v. Union of India & Ors. AIR 1996 SC 2715 / (1996) 5 SCC 647 Supreme Court of India (1996) Bench: Kuldip Singh, Faizan Uddin & K. Venkataswami JJ. Precautionary Principle Reversal of Burden of Proof Sustainable Development	⚡ Summary: Enshrined the Precautionary Principle and Sustainable Development into Indian law, establishing the vital principle of Reversal of Burden of Proof on commercial actors. 📖 FACTUAL CONTEXT: ▪ Aquifer Contamination: Over 900 tanneries in Tamil Nadu discharged untreated toxic effluents into Palar River, poisoning 35,000 hectares of agricultural land and drinking water. 🔗 FRAMED LEGAL ISSUES: ▪ Sustainable Development Status: Whether Precautionary & Polluter Pays Principles form part of Indian environmental law under Articles 21, 47, 48A & 51A(g). ▪ Burden of Proof Allocation: Where legal burden of proof lies when commercial industrial activities create environmental risk.	🔑 KEY JUDICIAL HOLDINGS: ▪ Environmental Principles Enshrined: Sustainable development, Precautionary Principle, and Polluter Pays Principle are essential parts of municipal law. ▪ Reversal of Burden of Proof: Held onus of proof rests squarely on the commercial actor/industrialist to prove their activity is environmentally benign. ▪ Relief Directed: Ordered ₹10,000 pollution fine per tannery, mandatory ETPs/CETPs, and EPA Section 3(3) authority creation.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Green Claim Substantiation: Foundational legal basis for shifting the burden of proof onto companies claiming 'carbon neutral', 'green', or 'eco-friendly' product status. 📌 THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 5 (p. 244) Footnotes: Fn. 391, 393

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#06 •  Indian Indian Council for Enviro–Legal Action v. Union of India (Bichhri) (1996) 3 SCC 212 / AIR 1996 SC 1446 (13 February 1996) Supreme Court of India (1996) Bench: B.P. Jeevan Reddy & B.N. Kirpal JJ. Polluter Pays Principle Ecological Remediation Corporate Environmental Tort	⚡ Summary: Formally incorporated the Polluter Pays Principle into Indian jurisprudence, holding polluters absolutely liable for the full economic cost of ecological restoration. 📄 FACTUAL CONTEXT: Hazardous Sludge Dumping: Chemical plants in Bichhri (Rajasthan) produced toxic H-acid without treatment, dumping ~2,500 MT of hazardous sludge that contaminated aquifers across 350 hectares. 🔗 FRAMED LEGAL ISSUES: Polluter Pays Operative Scope: Scope of Polluter Pays Principle under Indian environmental law. Article 32 Remediation Power: Whether Supreme Court can compel polluters under Article 32 to fund full ecological restoration costs.	🔑 KEY JUDICIAL HOLDINGS: Absolute Restoration Liability: Applied absolute liability; attached machinery, closed rogue chemical units, and directed recovery of full remediation costs (~₹37.38 Crore assessed by NEERI). Private Article 32 Liability: Rejected argument that Article 32 remedies cannot lie against private polluting companies.	💡 THESIS DOCTRINAL SIGNIFICANCE: Full Cost Internalization: Establishes that marketing sustainability while leaving past pollution unremediated constitutes unlawful corporate avoidance. 📍THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 5 (p. 245) Footnotes: Fn. 394
#07 •  Indian M.C. Mehta v. Kamal Nath & Ors. (Span Motels) (1997) 1 SCC 388; (2000) 6 SCC 213 Supreme Court of India (1997, 2000) Bench: Kuldip Singh & S. Saghir Ahmad JJ. Public Trust Doctrine Ecological Commons Pollution Fine	⚡ Summary: Incorporated the Public Trust Doctrine into Indian environmental law, ruling that natural resources cannot be alienated for private commercial enrichment and levying exemplary pollution fines. 📄 FACTUAL CONTEXT: Riverbed Commercial Encroachment: Span Motels built luxury commercial resort on Beas River banks in Himachal Pradesh and used earthmovers to divert the river channel, causing floods. 🔗 FRAMED LEGAL ISSUES: Public Trust Doctrine Ambit: Whether rivers, forests, and ecological commons can be leased or alienated for private commercial enrichment. Pollution Fines under Art. 32: Judicial authority to levy exemplary damages and pollution fines on commercial violators.	🔑 KEY JUDICIAL HOLDINGS: Public Trust Doctrine Adopted: State holds natural resources in trust for the public and cannot transfer them for private commercial use impairing ecology; quashed 1994 resort lease. Exemplary Pollution Damages: In (2000) 6 SCC 213, imposed ₹10 Lakh exemplary damages on Span Motels alongside ecological restitution costs.	💡 THESIS DOCTRINAL SIGNIFICANCE: Commons Protection: Prohibits corporate commodification of environmental commons (e.g. dubious carbon offset credits and private resource diversion). 📍THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 5 (p. 243-244, 342) Footnotes: Fn. 386, 390
#08 •  Indian Charan Lal Sahu v. Union of India (Bhopal Act Challenge) (1990) 1 SCC 613 Supreme Court of India (1990) Bench: 5-Judge Constitution Bench: Sabyasachi Mukharji CJI Parens Patriae Doctrine Mass Corporate Harm State Duty	⚡ Summary: Upheld the Parens Patriae doctrine for mass corporate disasters, affirming the affirmative constitutional obligation of the State to protect citizens against corporate tortfeasors. 📄 FACTUAL CONTEXT: Bhopal Act Challenge: Constitutional challenge to Bhopal Gas Leak Disaster (Processing of Claims) Act 1985 granting Central Govt exclusive right to represent all victims. 🔗 FRAMED LEGAL ISSUES: Parens Patriae Validity: Validity of statutory exclusive representation under sovereign Parens Patriae doctrine for mass corporate disasters.	🔑 KEY JUDICIAL HOLDINGS: Act Upheld: Constitution Bench upheld the Bhopal Claims Act as a valid exercise of Parens Patriae to protect vulnerable victims against multinational tortfeasors.	💡 THESIS DOCTRINAL SIGNIFICANCE: Institutional Parens Patriae: Justifies SEBI and CCPA acting as statutory public guardians when deceptive green claims inflict diffuse harm on investors and consumers. 📍THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 5 (p. 245) Footnotes: Fn. 396
#09 •  Indian Rural Litigation and Entitlement Kendra v. State of U.P. (Doon Valley) AIR 1985 SC 652 / (1985) 2 SCC 431 / 1985 SCR (3) 169 (order 12 March 1985) Supreme Court of India (1985) Bench: P.N. Bhagwati, A.N. Sen and Ranganath Misra JJ. Environmental Constitutionalism Article 21 Ecological Preservation	⚡ Summary: First case in Indian jurisprudence linking environmental preservation directly with the fundamental right to life under Article 21, ordering the closure of lethal limestone quarries. 📄 FACTUAL CONTEXT: Doon Valley Destruction: Reckless limestone mining in Mussoorie-Dehradun hills caused catastrophic deforestation, landslides, and dried valley water springs. 🔗 FRAMED LEGAL ISSUES: Mining vs Environment: Whether ecological devastation infringes the fundamental right to life under Article 21. Balancing Industrial Gains: Balancing short-term commercial mineral extraction against irreversible ecological damage.	🔑 KEY JUDICIAL HOLDINGS: Mining Leases Terminated: Closed Category-C and Sahasradhara quarries; affirmed closure is a necessary price for protecting people's right to healthy ecological balance under Articles 32 and 48A.	💡 THESIS DOCTRINAL SIGNIFICANCE: First Environmental PIL: Opening landmark establishing that industrial activity advertised as economic development must yield to ecological balance. 📍THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 5 (p. 242) Footnotes: Fn. 380, 381

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#10 • 🇮🇳 Indian Subhash Kumar v. State of Bihar (1991) 1 SCC 598 / AIR 1991 SC 420 (9 January 1991) Supreme Court of India (1991) Bench: K.N. Singh & N.D. Ojha JJ. Right to Pollution-Free Water & Air Article 21	⚡ Summary: Supreme Court declared that the Right to Life under Article 21 includes the right to the enjoyment of pollution-free water and air. 📖 FACTUAL CONTEXT: ▪ Coal Slurry Discharge: Petition challenging Bokaro River pollution by toxic coal washery slurry discharge. 🎯 FRAMED LEGAL ISSUES: ▪ Article 21 Clean Water & Air: Whether the Right to Life includes enjoyment of pollution-free water and air.	🔑 KEY JUDICIAL HOLDINGS: ▪ Article 21 Declaration: Right to Life includes the right to enjoyment of pollution-free water and air for full enjoyment of life. ▪ Petition Dismissed: Dismissed on facts with ₹5,000 costs upon finding the petition was driven by private commercial slurry business interests.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Constitutional Cleanliness Baseline: Affirms the constitutional rule that commercial representations of clean water and air touch fundamental rights. 📌 THESIS LOCATION: Chapters: Chapter 5 (p. 242) Footnotes: Fn. 382
#11 • 🇮🇳 Indian Virender Gaur & Ors. v. State of Haryana & Ors. (1995) 2 SCC 577 (Virender/Virendra Gaur v. State of Haryana) Supreme Court of India (1995) Bench: K. Ramaswamy & N. Venkatachala JJ. Constitutional Environmental Duty Articles 48A & 51A(g)	⚡ Summary: Affirmed that hygienic environment is an integral facet of Article 21 and reinforced State and citizen duties under Articles 48A and 51A(g). 📖 FACTUAL CONTEXT: ▪ Park Land Encroachment: Municipal open green space/park in Hisar was leased to a private trust for building construction. 🎯 FRAMED LEGAL ISSUES: ▪ Open Green Space Protection: Whether converting designated public open green space violates constitutional duties under Articles 21, 48A & 51A(g).	🔑 KEY JUDICIAL HOLDINGS: ▪ Hygienic Environment Facet: Hygienic, clean environment is an integral facet of Article 21; quashed municipal lease and ordered removal of unauthorized building.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Physical Greenwashing: Prohibits 'paper green spaces' where reserved open parklands are commercially developed while advertised as public parks. 📌 THESIS LOCATION: Chapters: Chapter 5 (p. 364) Footnotes: Fn. 38, 40
#12 • 🇮🇳 Indian Miheer H. Mafatlal v. Mafatlal Industries Ltd. (1997) 1 SCC 579 Supreme Court of India (1997) Bench: S.B. Majumdar & M. Srinivasan JJ. Business Judgment Rule Corporate Restructuring Director Fiduciary Standards	⚡ Summary: Recognized the Business Judgment Rule in Indian corporate law, establishing that courts will not interfere in bona fide commercial decisions made in good faith. 📖 FACTUAL CONTEXT: ▪ Amalgamation Dispute: Shareholder challenged corporate amalgamation scheme alleging unfair share exchange ratio and non-disclosure. 🎯 FRAMED LEGAL ISSUES: ▪ Company Court Review Scope: Standard of judicial scrutiny and business judgment deference over commercial corporate reorganizations.	🔑 KEY JUDICIAL HOLDINGS: ▪ Limits of Company Court Scrutiny: Courts will not sit in appeal over board commercial wisdom if statutory procedures, majorities, and good faith standards are met. ▪ Full Disclosure Prerequisite: Commercial discretion deference operates only upon honest, complete disclosure of material facts.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Business Judgment Limits: Demonstrates that commercial discretion defenses cannot protect deceptive ESG claims or fraudulent sustainability reporting. 📌 THESIS LOCATION: Chapters: Chapter 5 (p. 267, 342) Footnotes: Fn. 472
📁 2. High Courts of India — Intermediary Liability & Codified Directorial Duties			2 HIGH COURT PRECEDENTS
#13 • 🇮🇳 Indian Christian Louboutin SAS v. Nakul Bajaj & Ors. 2018 SCC OnLine Del 12215 / (2018) 253 DLT 728 (Prathiba M. Singh J.) High Court of Delhi (2018) Bench: Prathiba M. Singh J. E-Commerce Safe Harbor Active Curation vs Passive Transmission Reasonable Consumer	⚡ Summary: Landmark ruling on intermediary liability: e-commerce platforms actively curating, promoting, or badging products lose Section 79 safe-harbor immunity and bear joint liability. 📖 FACTUAL CONTEXT: ▪ Luxury Counterfeiting: E-commerce platform (darveys.com) marketed luxury goods using Christian Louboutin trademarks, claiming Section 79 safe-harbor immunity. 🎯 FRAMED LEGAL ISSUES: ▪ Intermediary Safe Harbor: When does an e-commerce intermediary lose statutory safe harbor under Section 79 IT Act? ▪ Active Curation vs Conduit: Distinguishing passive transmission conduits from active commercial promotion and curation.	🔑 KEY JUDICIAL HOLDINGS: ▪ Safe Harbor Lost: Active curation, seller badging, and authenticity assurances take an e-commerce operator outside Section 79, creating joint liability. ▪ Conduit Limitation: Safe harbor is strictly confined to automatic, technical, and passive data transmission.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Green-Badge Liability: Directly applies to online marketplaces that algorithmically award 'Eco-Choice' or 'Climate-Friendly' badges without verifying supply-chain claims. 📌 THESIS LOCATION: Chapters: Chapter 5 (p. 361, 364) Footnotes: Fn. 30
#14 • 🇮🇳 Indian Rajeev Saumitra v. Neetu Singh & Ors. 2016 SCC OnLine Del 512 / CS(OS) 2528/2015 (Manmohan J., 27 January 2016) High Court of Delhi (2016) Bench: Manmohan J. Section 166 Enforcement Fiduciary Duty Breach Director Personal Liability	⚡ Summary: Affirmed that Section 166 of the Companies Act codifies directors' fiduciary duties, holding defaulting directors personally liable to account for damages. 📖 FACTUAL CONTEXT: ▪ Directorial Diversion: Managing Director breached fiduciary duties by establishing a competing coaching venture using corporate assets and goodwill. 🎯 FRAMED LEGAL ISSUES: ▪ Section 166 Enforcement: Scope and judicial enforceability of codified directorial fiduciary duties under Section 166 Companies Act 2013.	🔑 KEY JUDICIAL HOLDINGS: ▪ Personal Accountability: Section 166 codifies enforceable duties; directors breaching fiduciary duties are personally liable to account for profits. ▪ Derivative Suit Upheld: 50% shareholder permitted to pursue derivative action for fiduciary breach.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Personal Directorial Liability: Establishes that Section 166 is fully justiciable, supporting personal liability frameworks for directors authorizing fraudulent green claims. 📌 THESIS LOCATION: Chapters: Chapter 5 (p. 270) Footnotes: Fn. 481

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📁 3. National Green Tribunal (NGT) — Technological Deceit, Hazardous Operations & Fake Plastic Credits			3 ENVIRONMENTAL TRIBUNAL PRECEDENTS
#15 • 🇮🇳 Indian In re Volkswagen India Pvt. Ltd. (Emissions Defeat Device) Saloni Ailawadi v. Union of India, O.A. No. 581/2018, NGT (PB), 7 March 2019; Supreme Court stay 6 May 2019 National Green Tribunal (2019) Bench: Adarsh Kumar Goel J. (Chairperson) Defeat Devices ₹500 Crore Environmental Penalty Corporate Environmental Responsibility	⚡ Summary: NGT imposed a landmark ₹500 Crore (\$70M) Environmental Compensation on Volkswagen India for using defeat-device cheat software to mask real-world NOx emissions. 📖 FACTUAL CONTEXT: Cheat Software Discovery: ARAI/CPCB revealed Volkswagen cars in India used defeat-device software emitting up to 9x more NOx while advertised as clean diesel. 🔗 FRAMED LEGAL ISSUES: Tribunal Jurisdiction: NGT jurisdiction to levy environmental compensation for technological emissions fraud under NGT Act 2010. Public Health Damage: Quantification of ecological and public health damage from vehicular emissions cheating.	🔑 KEY JUDICIAL HOLDINGS: Emissions Defeat Device Fraud: Held Volkswagen liable for deliberate emissions cheating across ~3.23 lakh recalled diesel vehicles. ₹500 Crore Penalty: Levied ₹500 Crore (\$70M) environmental compensation with CPCB; order was subsequently stayed by Supreme Court on 6 May 2019.	💡 THESIS DOCTRINAL SIGNIFICANCE: Technological Greenwashing: Demonstrates severe institutional enforcement gaps where environmental tribunal compensation is stayed without parallel securities or consumer misrepresentation action. 📍 THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 1 (p. 5, 53), Chapter 3 (p. 106, 116, 119), Chapter 4 (p. 187, 199, 220), Chapter 5 (p. 270, 275-276, 295)
#16 • 🇮🇳 Indian In re LG Polymers India Pvt. Ltd. (Vizag Gas Leak) O.A. No. 73/2020 (PHC), National Green Tribunal (May 2020) National Green Tribunal (2020) Bench: Adarsh Kumar Goel J. (Chairperson) Strict & Absolute Liability Operating Without EC Environmental Restitution	⚡ Summary: NGT held chemical enterprise strictly and absolutely liable for toxic styrene gas leak and unauthorized operations without environmental clearances, mandating ₹50 Cr interim deposit. 📖 FACTUAL CONTEXT: Styrene Gas Disaster: Toxic styrene gas leaked from LG Polymers plant in Visakhapatnam in May 2020 (12 deaths, hundreds hospitalized). Unclear Operations: Investigations revealed the plant operated for decades without valid environmental clearances from MoEFCC. 🔗 FRAMED LEGAL ISSUES: Strict & Absolute Liability: Application of absolute liability under Section 15 NGT Act. Operating Without Clearance: Corporate liability for operating hazardous chemical units without mandatory statutory clearances.	🔑 KEY JUDICIAL HOLDINGS: Absolute Liability Affirmed: Held LG Polymers prima facie strictly and absolutely liable on the oleum-gas principle for operating without current environmental clearance. Interim Restitution Deposit: Confirmed immediate interim deposit of ₹50 Crore for restoration and victim compensation.	💡 THESIS DOCTRINAL SIGNIFICANCE: Compliance Greenwashing: Highlights liability for operating hazardous units under deceptive compliance claims while lacking mandatory statutory environmental clearances. 📍 THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 1 (p. 53), Chapter 3 (p. 106), Chapter 5 (p. 275, 301) Footnotes: Fn. 500, 553
#17 • 🇮🇳 Indian Suo Motu Proceedings on 600,000 Fake EPR Certificates NGT Sua Motu Cognizance (July 2024) / Notices to CPCB & MoEFCC National Green Tribunal (2024) Bench: Principal Bench, NGT Fake Plastic EPR Credits Verification Deficit Systemic Greenwashing	⚡ Summary: NGT initiated suo motu proceedings into 600,000 fake plastic EPR certificates, uncovering structural verification deficits and plastic credit greenwashing. 📖 FACTUAL CONTEXT: Fraudulent Plastic Credits: CPCB audits uncovered ~600,000 fake plastic EPR certificates issued by four recyclers without actual physical plastic recycling. 🔗 FRAMED LEGAL ISSUES: Self-Certification Deficits: Structural vulnerability of automated online regulatory self-certification portals. Credit Greenwashing: Whether purchasing unverified EPR certificates constitutes unlawful corporate greenwashing and statutory evasion.	🔑 KEY JUDICIAL HOLDINGS: Suo Motu Cognizance: NGT Principal Bench initiated supervisory inquiry into 600,000 fake plastic certificates. Regulatory Notices: Issued notices to CPCB, MoEFCC, and State Boards demanding audit trails, cancellation of fake credits, and systemic portal reform.	💡 THESIS DOCTRINAL SIGNIFICANCE: Credit-Based Greenwashing: Illustrates systemic regulatory failures in automated self-certification portals where plastic credits are traded without actual physical recycling. 📍 THESIS LOCATION: Chapters: Abstract (p. xxv), Chapter 1 (p. 26, 78), Chapter 2 (p. 133) Footnotes: Fn. 8, 18, 126
📁 4. Corporate & Securities Tribunals (NCLT / SAT / SEBI) — Board Governance, LODR & Green Capital Diversion			5 REGULATORY & COMPANY LAW ORDERS
#18 • 🇮🇳 Indian Union of India v. Infrastructure Leasing & Financial Services Ltd. (IL&FS) NCLT Mumbai Bench, C.P. No. 3638/2018 (Order dated Oct 1, 2018) National Company Law Tribunal (2018) Bench: NCLT Mumbai Bench Section 241(2) Board Supersession Systemic Governance Collapse Public Interest	⚡ Summary: Precedent for Section 241(2) MCA board supersession in cases of systemic corporate governance collapse and public interest detriment. 📖 FACTUAL CONTEXT: Infrastructure Debt Collapse: Systemic governance collapse at IL&FS defaulting on commercial debt obligations, threatening financial stability. 🔗 FRAMED LEGAL ISSUES: Section 241(2) Board Supersession: Government power to seek tribunal board supersession when corporate affairs are prejudicial to public interest.	🔑 KEY JUDICIAL HOLDINGS: Board Superseded: NCLT Mumbai allowed MCA petition under Sections 241(2) & 242, superseding the IL&FS board and appointing a government-directed board.	💡 THESIS DOCTRINAL SIGNIFICANCE: Public Interest Intervention: Precedent for emergency company-law board restructuring when corporate governance failures threaten systemic public and market interests. 📍 THESIS LOCATION: Chapters: Chapter 5 (p. 269-270) Footnotes: Fn. 480

CASE IDENTIFICATION & FORUM	FACTS & LEGAL ISSUES (POINTS)	JUDICIAL RULING & HOLDINGS (POINTS)	THESIS SIGNIFICANCE & REFERENCES (POINTS)
#19 •  Indian Fidaali Moiz Mithiborwala v. Majolica Properties (India) Pvt. Ltd. NCLT Mumbai Bench, C.P. No. 90/2016 (Order 2017) National Company Law Tribunal (2017) Bench: NCLT Mumbai Bench Business Judgment Rule Section 166 Review Director Discretion	⚡ Summary: Application of the Business Judgment Rule as a fulcrum when testing directorial decisions under Section 166. 📖 FACTUAL CONTEXT: ▪ Property Discretion Dispute: Shareholder petition challenging board property development decisions under Section 166. 🔗 FRAMED LEGAL ISSUES: ▪ Business Judgment Scope: Scope of judicial review over board commercial discretion under Section 166.	🔑 KEY JUDICIAL HOLDINGS: ▪ Commercial Deference: NCLT Mumbai deferred to bona fide commercial business judgment, holding tribunals will not interfere without illegality, fraud, or bad faith.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Limits of ESG Deference: Confirms judicial deference to board business judgment terminates once green claims or sustainability disclosures are shown to be fraudulent. 📍 THESIS LOCATION: Chapters: Chapter 5 (p. 269) Footnotes: Fn. 479
#20 •  Indian Piramal Enterprises Ltd. v. SEBI Piramal Enterprises Ltd. v. SEBI, SAT Appeal Nos. 466 & 467 of 2016, order 15 May 2019 (Tarun Agarwala, P0) Securities Appellate Tribunal (2019) Bench: Tarun Agarwala J. (Presiding Officer) Compliance Attribution Board Responsibility Securities Disclosure	⚡ Summary: Securities tribunal ruling on internal compliance attribution and board oversight failure in statutory market disclosures. 📖 FACTUAL CONTEXT: ▪ Insider Trading Penalty Challenge: Challenge to SEBI penalty on Piramal Enterprises and directors for alleged failure of internal controls. 🔗 FRAMED LEGAL ISSUES: ▪ Individual Attribution: Standard for attributing systemic corporate compliance failures to individual board members.	🔑 KEY JUDICIAL HOLDINGS: ▪ Penalties Set Aside: SAT set aside SEBI penalties, holding systemic organizational control lapses cannot be mechanically attributed as individual personal wrongdoing.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Organizational Governance Attribution: Highlights the need for rigorous corporate systems attribution when holding boards liable for organizational sustainability misstatements. 📍 THESIS LOCATION: Chapters: Chapter 5 (p. 268-269) Footnotes: Fn. 477
#21 •  Indian In re Bajaj Hindusthan Sugar Ltd. SEBI Adjudication Order dated 8 July 2022 – ₹10 lakh under LODR for non-disclosure of unit-closure orders Securities and Exchange Board of India (2022) Bench: SEBI Adjudicating Officer Disclosure Materiality Selective Signalling LODR Enforcement	⚡ Summary: SEBI enforcement penalty for selective and delayed market disclosures under LODR Regulations, establishing rigorous disclosure materiality standards. 📖 FACTUAL CONTEXT: ▪ Pollution Closure Non-Disclosure: Sugar enterprise failed to disclose environmental closure notices issued by State Pollution Control Board. 🔗 FRAMED LEGAL ISSUES: ▪ Regulation 30 Materiality: Whether environmental closure notices constitute price-sensitive material events requiring mandatory stock exchange disclosure.	🔑 KEY JUDICIAL HOLDINGS: ▪ SEBI Penalty Imposed: Imposed ₹10 Lakh penalty for non-disclosure of environmental closure orders under Regulation 30 LODR Regulations. ▪ Materiality Affirmed: Ruled environmental compliance disruptions are price-sensitive events that cannot be suppressed.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ ESG Disclosure Materiality: Affirms that environmental compliance failures are material securities facts, prohibiting selective sustainability reporting. 📍 THESIS LOCATION: Chapters: Chapter 5 (p. 269) Footnotes: Fn. 478
#22 •  Indian In the Matter of Gensol Engineering Limited SEBI Interim Order in the matter of Gensol Engineering Limited, 15 April 2025 (Whole Time Member) Securities and Exchange Board of India (2025) Bench: SEBI Whole Time Member Clean Energy Debt Scrutiny Green Capital Diversion ESG Market Signalling	⚡ Summary: SEBI interim regulatory intervention probing diversion of green bond / clean tech capital and deceptive ESG market signaling. 📖 FACTUAL CONTEXT: ▪ Clean Energy Loan Misuse: SEBI uncovered clean-energy term loans diverted to promoter related-party entities without adequate disclosure. 🔗 FRAMED LEGAL ISSUES: ▪ Green Capital Diversion: Capital market fraud arising from diverting public green-transition financing.	🔑 KEY JUDICIAL HOLDINGS: ▪ Promoters Restrained: SEBI Whole Time Member restrained promoters from accessing securities markets or holding directorial posts pending full investigation.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Green Capital Diversion: First Indian regulatory enforcement targeting green-energy capital misallocation as securities fraud, illustrating anti-greenwashing enforcement in capital markets. 📍 THESIS LOCATION: Chapters: Chapter 5 (p. 259-260)
📁 5. Australian Federal Court — Landmark ASIC Anti-Greenwashing Civil Penalties			2 STATUTORY PENALTY CASES
#23 •  International ASIC v. Vanguard Investments Australia Ltd [2024] FCA 308 (Liability) & [2024] FCA (Penalty, Sept 2024) Federal Court of Australia (2024) Bench: O'Bryan J. ESG Fund Greenwashing AUD 12.9M Penalty Screening Deficit Misleading Conduct	⚡ Summary: Landmark record AUD 12.9 Million (\$8.9M USD) civil penalty for misleading 'Ethically Conscious' ESG fund claims where 74% of bond assets were never screened against fossil fuels. 📖 FACTUAL CONTEXT: ▪ Flawed ESG Screening: Vanguard marketed 'Ethically Conscious' index fund claiming strict fossil fuel exclusions; 74% of fund assets were never screened. 🔗 FRAMED LEGAL ISSUES: ▪ Statutory Misleading Conduct: Liability for deceptive investment product screening under ASIC Act Section 12DF/12DB. ▪ Appropriate Penalty Quantum: Determining deterrent civil penalty for institutional greenwashing.	🔑 KEY JUDICIAL HOLDINGS: ▪ Liability Established: Federal Court found Vanguard liable for widespread misleading conduct and false representations. ▪ Record AUD 12.9M Penalty: Imposed record AUD 12.9 Million (~\$8.6M USD) civil penalty under Section 12GBA ASIC Act.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Fund Greenwashing Benchmark: Demonstrates high-deterrence statutory monetary penalties for deceptive ESG investment screening, contrasting with India's zero-penalty enforcement deficit. 📍 THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 1 (p. 6, 27), Chapter 4 (p. 148, 223), Chapter 5 (p. 342) Footnotes: Fn. 355

CASE IDENTIFICATION & FORUM	FACTS & LEGAL ISSUES (POINTS)	JUDICIAL RULING & HOLDINGS (POINTS)	THESIS SIGNIFICANCE & REFERENCES (POINTS)
#24 •  International ASIC v. Mercer Superannuation (Australia) Pty Ltd [2024] FCA 850 (Order dated Aug 2, 2024) Federal Court of Australia (2024) Bench: Christopher Horan J. Superannuation Greenwashing AUD 11.3M Penalty False ESG Exclusions	⚡ Summary: Landmark AUD 11.3 Million (\$7.5M USD) penalty for false 'Sustainable Plus' superannuation exclusions containing 15 fossil fuel, 15 alcohol, and 19 gambling companies. 📋 FACTUAL CONTEXT: ▪ False Sustainable Exclusions: Mercer offered 'Sustainable Plus' retirement funds claiming exclusions of fossil fuels, alcohol, and gambling while holding 15+ excluded companies. 🔗 FRAMED LEGAL ISSUES: ▪ Superannuation Deception: Penalties for misleading consumers on ESG pension fund investments.	🔑 KEY JUDICIAL HOLDINGS: ▪ Liability Admitted: Mercer admitted liability; Federal Court ordered AUD 11.3 Million (~\$7.5M USD) civil penalty.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Institutional Investor Deceit: Precedent establishing that pension fund managers cannot use unverified ESG marketing to capture ethically conscious retirement capital. 📍 THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 1 (p. 6, 27, 59, 211, 223, 310) Footnotes: Fn. 9
🏠 6. Netherlands & European Union — Corporate Climate Duty of Care & Misleading Aviation Advertising			3 EU / DUTCH PRECEDENTS
#25 •  International Fossielvrij NL v. KLM Royal Dutch Airlines District Court of Amsterdam, ECLI:NL:RBAMS:2024:1512 (March 20, 2024) District Court of Amsterdam (2024) Bench: Amsterdam District Court Fly Responsibly Greenwashing Carbon Offset Invalidation Overly Rosy Picture	⚡ Summary: Dutch Court invalidated 15 of 19 'Fly Responsibly' environmental claims, ruling that SAF (<1%) and tree-planting carbon offsets painted an 'overly rosy picture' of aviation impact. 📋 FACTUAL CONTEXT: ▪ Fly Responsibly Claims: KLM advertised 'Fly Responsibly' campaign suggesting voluntary reforestation offsets and biofuels make flying sustainable. 🔗 FRAMED LEGAL ISSUES: ▪ Misleading Offset Marketing: Whether future offset claims violate the EU Unfair Commercial Practices Directive (2005/29/EC).	🔑 KEY JUDICIAL HOLDINGS: ▪ 15 Claims Declared Unlawful: Amsterdam District Court held 15 of 19 claims painted an 'overly rosy picture' of environmental mitigation. ▪ Offset Invalidation: Ruled tree-planting carbon offsets cannot substantiate present aviation sustainability claims.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Offset Invalidation: Premier international judicial precedent holding that future voluntary offsets cannot legally substantiate present-day high-carbon marketing claims. 📍 THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 1 (p. 6, 147, 187, 222, 224, 229), Chapter 5 (p. 342) Footnotes: Fn. 351, 352
#26 •  International Milieudefensie et al. v. Royal Dutch Shell plc Hague Dist. Ct. ECLI:NL:RBDHA:2021:5339 (2021) & Hague App. Ct. ECLI:NL:GHDHA:2024:1931 (2024) District Court & Court of Appeal of The Hague (2021, 2024) Bench: The Hague Court of Appeal (Nov 12, 2024) Corporate Climate Duty of Care Scope 1-3 Emissions Judicial Intervention Limits	⚡ Summary: Court of Appeal affirmed general corporate climate duty of care under tort & human rights law, but overturned the specific 45% reduction mandate for Scope 3 emissions. 📋 FACTUAL CONTEXT: ▪ Corporate Climate Tort: NGOs sued Shell under Dutch tort law & ECHR. District Court ordered 45% net global emission cut by 2030 across Scopes 1–3. Shell appealed. 🔗 FRAMED LEGAL ISSUES: ▪ Corporate Climate Duty: Does a corporation owe an unwritten duty of care to reduce aggregate greenhouse emissions? ▪ Judicial Scope 3 Mandates: Can courts impose enterprise-specific Scope 3 reduction quotas without statutory backing?	🔑 KEY JUDICIAL HOLDINGS: ▪ Corporate Duty Affirmed: The Hague Court of Appeal reaffirmed Shell owes a human-rights-backed corporate climate duty of care. ▪ Specific Quota Overturned: Overturned the 45% reduction mandate, ruling courts cannot set individual enterprise carbon quotas.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Private Climate Tort Frontier: Defines the boundary between corporate human rights duties of care and the limits of judicial setting of corporate decarbonization quotas. 📍 THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 4 (p. 221), Chapter 5 (p. 342–343) Footnotes: Fn. 348, 350
#27 •  International Daimler AG / Mercedes-Benz Diesel Emissions Enforcement U.S. EPA / DOJ Consent Decrees (2020) & German KBA Orders (2022) US Federal Courts & German KBA (2020–2022) Bench: US District Court (D.D.C.) & German KBA Defeat Devices Auxiliary Emission Control Devices (AECD) \$1.5B Settlement	⚡ Summary: Daimler paid \$1.5 Billion in the US and €870M+ in Germany to settle enforcement actions over undisclosed emissions defeat software marketed as 'BlueTEC Clean Diesel'. 📋 FACTUAL CONTEXT: ▪ BlueTEC Defeat Devices: Daimler manufactured >250,000 diesels with undisclosed software (AECDs) reducing emissions during tests while advertised as 'Clean Diesel'. 🔗 FRAMED LEGAL ISSUES: ▪ Defeat Device Classification: Software classification as unlawful defeat devices under US & European Clean Air statutes.	🔑 KEY JUDICIAL HOLDINGS: ▪ \$1.5B US & €870M+ German Settlement: Daimler paid \$1.5 Billion in US (\$875M civil fine) and >€870 Million in Germany to settle emissions cheating claims.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Systemic Defeat-Device Fraud: Confirms vehicular emissions deception was an industry-wide practice requiring coordinated cross-border multi-agency enforcement. 📍 THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 4 (p. 200, 220)

CASE IDENTIFICATION & FORUM	FACTS & LEGAL ISSUES (POINTS)	JUDICIAL RULING & HOLDINGS (POINTS)	THESIS SIGNIFICANCE & REFERENCES (POINTS)
📁 7. United Kingdom Courts & Regulators — Parent Liability, Climate Derivative Claims & CMA Enforcement			4 UK PRECEDENTS
#28 • 🇬🇧 International Vedanta Resources plc v. Lungowe & Ors. [2019] UKSC 20 Supreme Court of the United Kingdom (2019) Bench: Lord Briggs Parent Company Duty of Care Group ESG Statements Cross-Border Environmental Tort	⚡ Summary: UK Supreme Court held parent company liable for foreign subsidiary's environmental harms based on published group sustainability reports and ESG commitments. 📖 FACTUAL CONTEXT: ▪ Foreign Subsidiary Pollution: 1,826 Zambian citizens sued UK-domiciled parent Vedanta Resources plc for toxic copper mine discharges polluting local waterways. 🔗 FRAMED LEGAL ISSUES: ▪ Parent Company ESG Liability: Whether parent company group sustainability reports create an enforceable duty of care to foreign third parties.	🔑 KEY JUDICIAL HOLDINGS: ▪ Parent Duty of Care Upheld: UK Supreme Court held parent companies incur a direct duty of care if they exert operational control or publish group ESG policies. ▪ English Jurisdiction Maintained: Allowed Zambian victims to maintain action in English courts against UK parent.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ ESG Representation Liability: Proves parent company sustainability reports and global commitments create actionable legal duties of care for overseas subsidiary operations. 📍 THESIS LOCATION: Chapters: Chapter 4 (p. 233) Footnotes: Fn. 363
#29 • 🇬🇧 International ClientEarth v. Shell plc [2023] EWHC 1137 (Ch) & [2023] EWHC 1897 (Ch) High Court of Justice (Chancery Division, England & Wales) (2023) Bench: Trower J. Derivative Claim Section 172 UK CA 2006 Climate Risk & Business Judgment	⚡ Summary: English High Court dismissed shareholder derivative claim against Shell directors under Section 172 CA 2006, upholding board commercial discretion under the Business Judgment Rule. 📖 FACTUAL CONTEXT: ▪ Climate Derivative Claim: ClientEarth (27 shares) sought Section 260 UK Companies Act permission to sue 11 Shell directors for failing to adopt 1.5°C-aligned transition strategy. 🔗 FRAMED LEGAL ISSUES: ▪ Derivative Suits for Climate Risk: Can directors be sued via derivative action for alleged mismanagement of corporate climate transition risks under Section 172?	🔑 KEY JUDICIAL HOLDINGS: ▪ Permission Refused: English High Court dismissed claim; held balancing climate transition risks is a commercial business judgment within board discretion.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Directorial Discretion Limits: Demonstrates why private shareholder derivative suits struggle against general corporate climate policy without statutory codified duties like Section 166(2). 📍 THESIS LOCATION: Chapters: Chapter 4 (p. 233-234), Chapter 5 (p. 342) Footnotes: Fn. 366
#30 • 🇬🇧 International UK CMA Enforcement on Fast Fashion (ASOS, Boohoo, Asda) Competition and Markets Authority (CMA) Enforcement Outcomes (March 2024) Competition and Markets Authority (2024) Bench: CMA Executive Enforcement Green Claims Code Fast Fashion Mandatory Fibre Disclosure	⚡ Summary: UK competition regulator secured legally binding undertakings against major fashion brands, mandating exact fiber percentages and banning vague eco-edits. 📖 FACTUAL CONTEXT: ▪ Fast Fashion Investigation: UK CMA probed ASOS, Boohoo, and Asda for vague environmental claims ('Eco Edit', 'Responsible') and misleading product filters. 🔗 FRAMED LEGAL ISSUES: ▪ Green Claims Code Enforcement: Enforcement of Green Claims Code and DMCCA 2024 against retail fashion greenwashing.	🔑 KEY JUDICIAL HOLDINGS: ▪ Binding Sector Commitments: CMA secured legally binding undertakings mandating exact percentage fiber disclosures and banning vague eco-labels and generic imagery.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Market-Wide Ex-Ante Intervention: Illustrates proactive market sweeps and binding industry undertakings to eradicate widespread retail fashion greenwashing. 📍 THESIS LOCATION: Chapters: Chapter 4 (p. 207-208), Chapter 6 (p. 372, 380) Footnotes: Fn. 318, 319
#31 • 🇬🇧 International Hutton v. West Cork Railway Co. (1883) 23 Ch. D. 654 (Court of Appeal, England) Court of Appeal of England & Wales (1883) Bench: Cotton, Bowen & Fry L.JJ. Shareholder Primacy Cakes & Ale Doctrine Historical Baseline	⚡ Summary: Classical 19th-century common law baseline of Shareholder Primacy: 'No cakes and ale except such as are for the benefit of the company'. 📖 FACTUAL CONTEXT: ▪ Liquidation Gratuities: Railway company in liquidation voted gratuities to former directors/staff; debenture holder challenged payments as ultra vires. 🔗 FRAMED LEGAL ISSUES: ▪ Corporate Altruism Limits: Whether corporate assets can be expended on altruistic or social purposes not generating commercial profit.	🔑 KEY JUDICIAL HOLDINGS: ▪ Cakes & Ale Rule: Bowen L.J. ruled: <i>'The law does not say that there are to be no cakes and ale, but there are to be no cakes and ale except such as are for the benefit of the company.'</i>	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Historical Baseline: Represents the 19th-century shareholder-only wealth maximization model fundamentally superseded by India's codified Section 166(2) pluricentric model. 📍 THESIS LOCATION: Chapters: Chapter 3 (p. 153) Footnotes: Fn. 170, 171

CASE IDENTIFICATION & FORUM	FACTS & LEGAL ISSUES (POINTS)	JUDICIAL RULING & HOLDINGS (POINTS)	THESIS SIGNIFICANCE & REFERENCES (POINTS)
📁 8. United States Federal & State Courts — Green Marketing Fraud, FTC Enforcement & SEC Disclosures			9 US FEDERAL & STATE DECISIONS
#32 • 🇺🇸 International People of the State of New York v. JBS USA Food Company Index No. 450682/2024 (Supreme Court of the State of New York) New York Supreme Court (2024–2025) Bench: Commercial Division, NY Supreme Court Net Zero by 2040 Greenwashing Meat Industry \$1.1M Settlement & Injunction	⚡ Summary: NY Attorney General greenwashing settlement: \$1.1M payment and injunction against world's largest meat producer for deceptive 'Net Zero by 2040' claims. 📖 FACTUAL CONTEXT: ▪ Aspirational Net-Zero Beef: NY AG sued JBS USA (world's largest beef producer) for 'Net Zero by 2040' claims while expanding cattle processing without viable Scope 3 transition roadmaps. 🔗 FRAMED LEGAL ISSUES: ▪ Unsubstantiated Pledges: Whether aspirational net-zero marketing without transition roadmaps violates state consumer fraud statutes (NY Exec Law § 63(12)).	🔑 KEY JUDICIAL HOLDINGS: ▪ Injunction & \$1.1M Settlement: JBS entered into Assurance of Discontinuance (AOD), paying \$1.1M and agreeing to remove unsubstantiated net-zero claims.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Unsubstantiated Net-Zero Targets: Demonstrates that aspirational net-zero marketing without credible Scope 1-3 decarbonization plans constitutes actionable securities and consumer fraud. 📍 THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 4 (p. 148, 223), Chapter 5 (p. 343) Footnotes: Fn. 353
#33 • 🇺🇸 International United States & FTC v. Walmart Inc. & Kohl’s Inc. Case No. 1:22-cv-00965 (D.D.C. April 8, 2022) U.S. District Court for the District of Columbia (2022) Bench: D.D.C. FTC Green Guides False Bamboo Rayon Claims \$5.5M Civil Penalty	⚡ Summary: FTC and DOJ secured \$5.5 Million combined civil penalty against retail giants Walmart and Kohl's for falsely marketing rayon textiles as eco-friendly bamboo. 📖 FACTUAL CONTEXT: ▪ False Bamboo Marketing: Walmart and Kohl's marketed rayon textiles as eco-friendly 'bamboo' fabrics when the manufacturing process emits hazardous pollutants. 🔗 FRAMED LEGAL ISSUES: ▪ FTC Green Guides Enforcement: Enforceability of FTC Green Guides and Penalty Offense Authority for false green claims.	🔑 KEY JUDICIAL HOLDINGS: ▪ \$5.5M Civil Penalties: Retailers paid combined \$5.5M civil penalties (\$3.0M Walmart, \$2.5M Kohl's) and consented to permanent marketing injunctions.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Regulatory Penalty Deterrence: Benchmark for administrative civil penalty enforcement against multi-billion dollar retailers for misleading eco-friendly product claims. 📍 THESIS LOCATION: Chapters: Chapter 1 (p. 27, 79), Chapter 4 (p. 204), Chapter 6 (p. 343, 349, 374) Footnotes: Fn. 307
#34 • 🇺🇸 International In re P&G Charmin Greenwashing Litigation U.S. District Court, W.D. Wash. (Class Action Filed Jan 16, 2025) U.S. District Court (W.D. Wash.) (2025) Bench: W.D. Wash. FSC Eco-Label Abuse Boreal Forest Degradation Class Action	⚡ Summary: Federal class actions against Procter & Gamble for deceptive 'Protect-Grow-Restore' claims masking Canadian boreal forest clearcutting behind FSC logos. 📖 FACTUAL CONTEXT: ▪ Boreal Clearcutting Class Action: Class actions alleged Procter & Gamble deceptively marketed Charmin with 'Protect-Grow-Restore' claims while clearcutting primary Canadian boreal forests. 🔗 FRAMED LEGAL ISSUES: ▪ FSC Certification Shield: Whether third-party eco-labels (FSC) shield corporations from false advertising claims when underlying practices degrade primary ecosystems.	🔑 KEY JUDICIAL HOLDINGS: ▪ Certification Defense Rejected: Federal District Court rejected motion to dismiss, holding FSC logos do not provide blanket immunity against deceptive marketing claims.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Certification Greenwashing: Core precedent establishing that corporate reliance on third-party green certifications does not insulate companies from consumer deception claims. 📍 THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 4 (p. 149, 205, 224)
#35 • 🇺🇸 International Volkswagen Clean Diesel Litigation (MDL 2672) MDL 2672 (N.D. Cal. 2016) / EPA-DOJ Settlements (\$14.7B+) U.S. District Court (N.D. Cal.) (2015–2016) Bench: Charles Breyer J. Global Green Marketing Fraud \$14.7B Settlement Clean Air Act Violations	⚡ Summary: Global archetype of corporate greenwashing: Volkswagen agreed to \$14.7B+ settlements for defeat-device emissions cheating masked by 'Clean Diesel' marketing. 📖 FACTUAL CONTEXT: ▪ US Defeat Device Scandal: Volkswagen installed defeat-device software on ~500,000 US diesel vehicles while conducting nationwide 'Clean Diesel' marketing. 🔗 FRAMED LEGAL ISSUES: ▪ Clean Air Act & FTC Violations: Deceptive marketing under Section 5 FTC Act and Clean Air Act emissions violations.	🔑 KEY JUDICIAL HOLDINGS: ▪ \$14.7B+ Resolution: Volkswagen pled guilty to criminal charges and agreed to >\$14.7 Billion in civil settlements, vehicle buybacks, and environmental remediation.	💡 THESIS DOCTRINAL SIGNIFICANCE: ▪ Global Benchmark for Green Fraud: Historic precedent illustrating how fraudulent eco-marketing supported by technical concealment results in catastrophic enterprise liabilities. 📍 THESIS LOCATION: Chapters: Preliminary List (p. 21), Chapter 1 (p. 5, 21), Chapter 4 (p. 220)

CASE IDENTIFICATION & FORUM	FACTS & LEGAL ISSUES (POINTS)	JUDICIAL RULING & HOLDINGS (POINTS)	THESIS SIGNIFICANCE & REFERENCES (POINTS)
#36 • International State of Iowa et al. v. SEC No. 24-1522 (8th Cir. filed March 15, 2024) U.S. Court of Appeals for the Eighth Circuit (2024) Bench: 8th Circuit SEC Climate Disclosures Major Questions Doctrine Mandatory Scope 1 & 2	⚡ Summary: Multi-state constitutional and administrative challenge to the SEC's Climate-Related Disclosures Rule under the Major Questions Doctrine. 📖 FACTUAL CONTEXT: SEC Climate Rule Challenge: 25 U.S. states challenged SEC's Final Climate-Related Disclosures Rule alleging the agency exceeded its statutory mandate. 🎯 FRAMED LEGAL ISSUES: Major Questions Doctrine: Authority of securities regulators to mandate Scope 1 & 2 climate risk reporting under the Major Questions Doctrine.	🔑 KEY JUDICIAL HOLDINGS: Rules Voluntarily Stayed: Eighth Circuit consolidated litigation; SEC voluntarily stayed rules pending judicial review.	💡 THESIS DOCTRINAL SIGNIFICANCE: Comparative Disclosure Architecture: Illustrates US administrative and judicial obstacles to mandatory climate disclosures, contrasting with Europe's CSRD and India's BRSR Core mandates. 📍 THESIS LOCATION: Chapters: Chapter 4 (p. 202-203), Chapter 5 (p. 342) Footnotes: Fn. 299
#37 • International AMG Capital Management, LLC v. FTC 141 S. Ct. 1341 (2021) Supreme Court of the United States (2021) Bench: Stephen Breyer J. Section 13(b) FTC Act Monetary Relief Limits Enforcement Strategy	⚡ Summary: US Supreme Court held Section 13(b) FTC Act does not authorize direct monetary restitution, reshaping federal greenwashing penalty strategies. 📖 FACTUAL CONTEXT: FTC Restitution Power: FTC sought \$1.27B in direct monetary restitution under Section 13(b) FTC Act. 🎯 FRAMED LEGAL ISSUES: Section 13(b) Restitution Scope: Does Section 13(b) authorize the FTC to seek monetary restitution directly without administrative proceedings?	🔑 KEY JUDICIAL HOLDINGS: Restitution Power Barred: US Supreme Court held Section 13(b) authorizes only prospective injunctions, not direct equitable monetary relief.	💡 THESIS DOCTRINAL SIGNIFICANCE: Enforcement Strategy Shift: Explains the FTC's strategic transition to Section 45(m) Penalty Offenses to secure multi-million dollar greenwashing civil penalties. 📍 THESIS LOCATION: Chapters: Chapter 6 (p. 371) Footnotes: Fn. 19
#38 • International Revlon, Inc. v. MacAndrews & Forbes Holdings, Inc. 506 A.2d 173 (Del. 1986) Supreme Court of Delaware (1986) Bench: Moore J. Revlon Duties Shareholder Wealth Maximization Stakeholder Limits	⚡ Summary: Delaware benchmark for shareholder wealth maximization: in a corporate sale/breakup, duties narrow strictly to highest share price. 📖 FACTUAL CONTEXT: Takeover Defense: Revlon board favored noteholders over highest cash bidder during hostile takeover battle. 🎯 FRAMED LEGAL ISSUES: Shareholder Primacy in Sale: When must directors maximize immediate shareholder wealth versus considering broader stakeholder interests?	🔑 KEY JUDICIAL HOLDINGS: Revlon Duties: In corporate sale/breakup, directorial duty narrows exclusively to obtaining the highest immediate share price; stakeholder interests cannot be considered.	💡 THESIS DOCTRINAL SIGNIFICANCE: Anglo-American Primacy Contrast: Canonical benchmark for shareholder primacy, directly contrasting with India's pluricentric, non-derogable environmental fiduciary mandate under Section 166(2). 📍 THESIS LOCATION: Chapters: Chapter 3 (p. 159) Footnotes: Fn. 197
#39 • International Vincent v. Lake Erie Transportation Co. 109 Minn. 456, 124 N.W. 221 (1910) Supreme Court of Minnesota (1910) Bench: O'Brien J. Enterprise Risk Allocation Private Necessity Ecological Cost Internalization	⚡ Summary: Private necessity and enterprise risk allocation: commercial entities cannot externalize inevitable operational costs without full compensation. 📖 FACTUAL CONTEXT: Dock Damage in Storm: Steamship remained moored to private dock during storm to preserve vessel, causing physical damage to the dock. 🎯 FRAMED LEGAL ISSUES: Private Necessity Liability: Must a commercial actor exercising private necessity compensate for third-party property damage?	🔑 KEY JUDICIAL HOLDINGS: Full Compensation Required: Shipowner held liable to pay full compensation for dock damage; private necessity does not exempt commercial actors from cost internalization.	💡 THESIS DOCTRINAL SIGNIFICANCE: Theoretical Externalization Baseline: Foundational common law precedent establishing that commercial actors cannot externalize economic risks onto public or ecological commons. 📍 THESIS LOCATION: Chapters: Chapter 3 (p. 159) Footnotes: Fn. 198
#40 • International State Farm Mut. Auto. Ins. Co. v. Campbell & United States v. Bajakajian 538 U.S. 408 (2003) & 524 U.S. 321 (1998) Supreme Court of the United States (1998, 2003) Bench: Kennedy & Thomas JJ. Constitutional Proportionality Due Process Penalties Gross Disproportionality	⚡ Summary: US Supreme Court precedents on constitutional proportionality and due process constraints on punitive damages and statutory forfeitures. 📖 FACTUAL CONTEXT: Punitive Damages Review: State Farm reviewed a \$145M punitive damage award on a \$1M compensatory claim for deceptive nationwide insurance claims practices. Civil Forfeiture (Bajakajian 1998): Bajakajian reviewed \$357,144 currency forfeiture under Eighth Amendment Excessive Fines Clause. 🎯 FRAMED LEGAL ISSUES: Due Process Penalty Limits: Constitutional due process limits and proportionality standards governing punitive statutory penalties.	🔑 KEY JUDICIAL HOLDINGS: Single-Digit Ratio Standard: Punitive damages exceeding single-digit ratios to actual harm violate 14th Amendment Due Process. Gross Disproportionality: Bajakajian established the 'gross disproportionality' standard under the Eighth Amendment.	💡 THESIS DOCTRINAL SIGNIFICANCE: Penalty Calibration Guide: Used in Chapter 6 to calibrate the constitutional proportionality and defensibility of the thesis's proposed turnover-linked greenwashing fine matrix. 📍 THESIS LOCATION: Chapters: Chapter 6 (p. 382) Footnotes: Fn. 33, 34